

Smt. Vedavati @ Latha vs Dr.Puttaraju on 13 July, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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NC: 2023:KHC:24356-DB
MFA No.4024 of 2018

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 13TH DAY OF JULY, 2023
PRESENT
THE HON'BLE MR. JUSTICE ALOK ARADHE
AND
THE HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE
MISCELLANEOUS FIRST APPEAL NO.4024 OF 2018 (FC)
BETWEEN:

Digitally
signed by
RUPA V
Location:
High Court
of Karnataka

1. SMT. VEDAVATI @ LATHA
AGED ABOUT 56 YEARS
W/O DR. PUTTARAJU
R/AT NO.93, GROUND FLOOR
4TH A MAIN, 5TH CROSS
FURTHER EXTENSION OF
MAHALAKSHMI LAYOUT
BANGALORE-560 086.

...APPELLANT

(BY SRI. M.T. NANIAH, SR. COUNSEL FOR
SRI. PRABHUGOUDA B. TUMBIGI, ADV.,)

AND:

1. DR. PUTTARAJU
AGED ABOUT 67 YEARS
S/O LATE CHIKKAMADEGOWDA
R/AT NO.93, FIRST FLOOR
4TH A MAIN, 5TH CROSS
FURTHER EXTENSION OF
MAHALAKSHMI LAYOUT
BANGALORE-560 086.

...RESPONDENT

(BY SMT. SANDHYA JAMADAGNI, ADV., FOR C/R (ABSENT))

THIS MFA IS FILED U/S 19(1) OF THE FAMILY COURTS
ACT, AGAINST THE JUDGMENT AND DECREE
DATED:27/03/2018, PASSED IN M.C. NO.3072/2011, ON THE

BENGALURU, DISMISSING THE PETITION FILED U/SEC.13(1)
(ia) & (ib) OF HINDU MARRIAGE ACT.

THIS APPEAL COMING ON FOR FINAL HEARING, THIS
DAY, ALOK ARADHE J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal under Section 19(1) of the Family Courts Act, 1984 has been filed against judgment and decree dated 27.03.2018 passed by the family court, by which petition filed by the appellant / wife seeking dissolution of marriage on the ground enumerated under Section 13(1)(ia) & (ib) of the Hindu Marriage Act, 1955 (hereinafter referred to as 'the Act' for short) has been dismissed.

2. Facts giving rise to filing of this appeal briefly stated are that the marriage between the parties was solemnized on 30.11.1983. Out of the wedlock, on 04.11.1985, a daughter was born to them.

3. On or about 09.06.2011, the appellant/wife filed a petition seeking dissolution of marriage on the ground of desertion and cruelty. The respondent / NC: 2023:KHC:24356-DB husband filed his statement of objections as well as the counter claim seeking restitution of conjugal rights. The family court recorded the evidence of the parties and thereafter, vide judgment dated 27.03.2018 inter alia held that the appellant / wife failed to prove the ground pleaded by her viz., cruelty and desertion seeking dissolution of marriage. It was further held that no case for restitution of conjugal rights was also made out. Accordingly, the family court vide judgment dated 27.03.2018 dismissed the counter claim preferred by the respondent / husband seeking restitution of conjugal rights and granted a decree for judicial separation under Section 10 of the Act. Being aggrieved by the aforesaid judgment and decree, the appellant has filed this appeal.

4. Learned Senior Counsel for the appellant submitted that from perusal of the record, it is evident that the parties are residing separately since, 2009 and NC: 2023:KHC:24356-DB there are no chances of reconciliation. It is further submitted that in the facts and circumstances of the case, bearing mind the mandate contained under Section 13(1)(ia) of the Act, the decree for dissolution of marriage be passed as parties have not resided together till today ever since, passing of the judgment and decree dated 27.03.2018.

5. We have considered the submissions made by Learned Senior Counsel for the appellant and have perused the record. Ordinarily we would have granted the liberty to the appellant to file a petition under Section 13(1)(ia) of the Act, however, in the peculiar facts of the case and on perusal of the material on record, it is clear that the parties are not residing together since, 2009. Section 13(1)(ia) of the Act reads as under:

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13.Divorce-

(1) Any marriage solemnized, whether before or after the commencement of this Act, may, on a petition presented by either the husband or the wife, be dissolved by a decree of divorce on the ground that the other party--

(ia) has, after the solemnization of the marriage, treated the petitioner with cruelty;

6. Thus, the court cannot grant a decree seeking dissolution of marriage on the ground whether the decree for judicial separation has not been given effect to for a period more than a year. In the instant appeal, no stay of the judgment and decree has been granted. Even after passing of the judgment and decree, the parties are residing separately. It is also pertinent to note that the respondent / husband has also not questioned the decree passed by the family court seeking judicial separation. Therefore, the ground for NC: 2023:KHC:24356-DB dissolution of marriage under Section 13(1)(ia) of the Act is made out.

7. For the aforementioned reasons, the marriage performed between the parties is dissolved by a decree of divorce on the ground under Section 13(1)(ia) of the Act. The judgment and decree passed by the family court is accordingly modified.

In the result, the appeal is allowed.

Sd/-

JUDGE Sd/-

JUDGE SS